

IN THE [COURT NAME]
[STATE] — [COUNTY] DIVISION

In the Matter of the Dependency Proceeding Concerning [CHILD INITIALS]
Case No. _____

**MOTION TO DISMISS OR, IN THE ALTERNATIVE,
FOR STAY PENDING PROPER SERVICE
WITH REQUIRED FINDINGS OF FACT AND CONCLUSIONS OF LAW
PRO SE — JAMES CHAPMAN, FATHER**

PRELIMINARY STATEMENT

My name is James Chapman. I am the father of these children. I appear today without counsel. I have not been properly served. I have not seen the petition, the affidavits, or any of the evidence the Department used to remove my children. I am asking this Court to dismiss this petition — or, at minimum, to stay all proceedings until I have been properly served and given a meaningful opportunity to respond.

I am not asking this Court to take my word for anything. I am asking this Court to follow the Department's own actions, in sequence, to their logical conclusion. When examined in order, those facts do not suggest a constitutional violation — they prove one. More specifically, they prove that the Department manufactured the emergency it used to remove my children.

The legal standard governing this Court's analysis is the Due Process Clause of the Fourteenth Amendment. The Supreme Court of the United States has held, without qualification or exception, that the parent-child relationship is among the oldest fundamental liberty interests recognized in American jurisprudence. Any judge who denies this motion is obligated to explain, in writing, why the controlling holdings of the following cases do not apply:

Troxel v. Granville, 530 U.S. 57, 65 (2000) — "[T]he interest of parents in the care, custody, and control of their children — is perhaps the oldest of the fundamental liberty interests recognized by this Court."

Santosky v. Kramer, 455 U.S. 745, 753 (1982) — "[T]he interest of parents in their relationship with their children is sufficiently fundamental to come within the finite class of liberty interests protected by the Fourteenth Amendment."

Stanley v. Illinois, 405 U.S. 645, 651 (1972) — "The private interest here, that of a man in the children he has sired and raised, undeniably warrants deference and, absent a powerful countervailing interest, protection."

These are not minority positions. They are unanimous, binding, and unreversed. They represent the floor below which no court may go.

I. THE FACTS — IN SEQUENCE

The sequence of the Department's own actions is the most important thing in this record. Each step must be understood in relation to the one before it.

Friday: My wife was arrested. I was the non-offending parent.

My wife was arrested for domestic assault. I was the victim. I remained at home with our children. The Department took no action. No emergency was declared. The children were in my care, safely, from Friday through Monday noon — approximately 72 hours — without any intervention.

That 72-hour silence is legally dispositive. The Supreme Court has defined 'emergency' to mean imminent and present danger — not danger that can wait three full days:

Youngberg v. Romeo, 457 U.S. 307, 321 (1982) — State action depriving a person of liberty must be "rationally related" to a legitimate government objective; arbitrary deprivation violates substantive due process.

Brokaw v. Mercer County, 235 F.3d 1000, 1010 (7th Cir. 2000) — Emergency removal is constitutionally justified only when "the children were in imminent danger of serious bodily harm" at the moment of removal.

A danger that did not require action for 72 hours is, by definition, not imminent. The Department's own inaction is a concession this Court may not ignore.

Monday noon: Coerced Urinalysis Under Explicit Threat.

DHS and a police officer arrived at my home. I was told directly: submit to a urinalysis immediately, or they would file to remove my children. I did not consent freely. I complied under an explicit coercive threat. The Supreme Court has directly addressed coerced compliance:

Lynumn v. Illinois, 372 U.S. 528, 534 (1963) — Compliance obtained by threatening to deprive a person of their children is not voluntary consent and is constitutionally invalid.

Bumper v. North Carolina, 391 U.S. 543, 550 (1968) — "When a law enforcement officer claims authority to search ... [the person] has been coerced even though he [consented]."

I immediately observed visible contamination in the container. I objected on the spot. The officer present acknowledged what I pointed to. Because I disputed the integrity of the sample, I did not sign certifying it. I never accepted that test as valid. The officer's body-worn camera was recording and captures my immediate objection, the officer's acknowledgment, and everything that followed.

The Department Verified the DNCO — and Represented the Children Would Remain Home.

After the urinalysis, the Department dispatched an officer to verify whether the Domestic No Contact Order prevented my wife from being with the children if I voluntarily left. The officer returned and confirmed: the DNCO did not cover the children. My wife could be with them. I was told to leave when she arrived, and that the children would remain home.

This verification is the single most telling fact in the record. The Supreme Court has held that government-induced reliance on official representations carries constitutional weight:

Heckler v. Community Health Services, 467 U.S. 51, 60 (1984) — The government may not act in a manner that defeats the reasonable reliance of a citizen on its own representations, particularly when the citizen's conduct was induced by those representations.

Perry v. Sindermann, 408 U.S. 593, 600–601 (1972) — A person's reliance on an implied or explicit government promise, when that reliance causes concrete harm, may constitute a protected liberty or property interest.

There is no other reason to investigate the DNCO scope. If removal was already decided, that legal question was irrelevant. The Department verified because the representation was intentional.

I Left at the Department's Direction — Based on a Verified Representation.

I did not abandon my children. I left my children at home with their mother, based on an explicit, verified representation by the Department that this arrangement was lawful. I was never told a hold was being filed. I found out about the removal, the petition, and the hearings after the fact — without notice.

After I Left: The Department Filed an Emergency Hold Citing the UA as Imminent Danger.

With me gone, and my children in the home with their mother and no restrictions in place, the Department filed a 72-hour emergency hold. They cited the contested urinalysis as the basis for imminent danger — directed at a person they had just instructed to leave. The filing was made without telling me. Without serving me. Without prior judicial authorization.

The 72-Hour Hearing Occurred Without Me.

The proceeding specifically designed to test whether emergency removal is justified occurred without me. I was not served. I was not notified. I had no fixed address because the Department's own instructions had removed me from my home. The Court declined at that hearing to impose the additional constraints the Department requested.

I have still not been properly served. I appeared today because I was told I have a court date. I do not yet have the papers.

II. THE CONSTITUTIONAL VIOLATION: THE DEPARTMENT MANUFACTURED THE EMERGENCY

A. The Governing Standard

Emergency removal of a child requires imminent danger — danger that exists at the moment of the action, serious enough that waiting for a judicial hearing would place the child at immediate risk of harm. This is a constitutional floor, not a procedural preference. Any ruling that fails to apply this floor requires this Court to overtly contradict the following binding authorities:

Mathews v. Eldridge, 424 U.S. 319, 335 (1976) — Courts must balance: (1) the private interest at stake; (2) the risk of erroneous deprivation; and (3) the government's interest. Here, the private interest — parental custody — is at the apex of constitutional protection. The risk of erroneous deprivation is proven by the sequence of the Department's own conduct. The government's interest is zero where no genuine emergency existed.

Reno v. Flores, 507 U.S. 292, 302 (1993) — Substantive due process forbids the government from "depriving a person of life, liberty, or property" through action that "shocks the conscience" or is "arbitrary" — regardless of what procedures follow.

County of Sacramento v. Lewis, 523 U.S. 833, 846 (1998) — "[T]he due process guarantee does not entail a body of constitutional law imposing liability whenever someone cloaked with state authority causes harm." But "conduct intended to injure in some way unjustifiable by any government interest" most clearly satisfies the shocks-the-conscience standard.

B. The Department's Own Conduct Disproves the Emergency

The Department's stated basis for the emergency hold was the contested urinalysis — evidence that I was a danger to my children. That argument requires this Court to accept that a test which was: (1) obtained under coercive threat, (2) immediately disputed with visible contamination, (3) never signed or certified by me, and (4) attributed to a person who had already left the home at the Department's direction — constituted imminent danger. It does not. And the Supreme Court has addressed each element:

Illinois v. Rodriguez, 497 U.S. 177, 188–89 (1990) — Evidence obtained through consent must be truly voluntary; consent obtained under color of authority or coercive circumstances is constitutionally suspect.

Franks v. Delaware, 438 U.S. 154, 156 (1978) — A warrant — or here, an emergency hold — resting on deliberately false or recklessly misleading information must be voided. Where a contested and unverified test forms the sole basis for emergency action, the factual predicate is insufficient.

The UA was about me. I was gone. The Department knew I was gone because they told me to leave. At the moment the hold was filed, I was not in the home. There was no emergency. The Department filed one anyway.

C. The Three-Day Silence Confirms There Was No Emergency

From Friday through Monday noon — approximately 72 hours — I was alone with my children and the Department took no action. The Supreme Court has repeatedly required that emergency action be proportionate to genuine, present danger:

Zadvydas v. Davis, 533 U.S. 678, 690 (2001) — Government liberty deprivations must be reasonably related in scope and duration to the purpose they serve; action exceeding that nexus violates due process.

United States v. Salerno, 481 U.S. 739, 748 (1987) — Even where a compelling government interest exists, the deprivation "must be narrowly focused" — a three-day delay before action is irreconcilable with a claim of imminent danger.

The emergency only appeared on paper after I walked out the door at the Department's direction — because the Department needed a legal basis for a removal it had already decided to make.

D. The Verification of the DNCO Is Direct Evidence of Pretext

An officer was dispatched to confirm a specific legal question: whether the DNCO covered the children, such that my wife could be with them if I left. That verification only makes sense if my children remaining home was the actual plan. If removal had already been decided, the DNCO question was irrelevant. The Department investigated because they represented to me — and to the officer — that my children would stay home.

Brady v. Maryland, 373 U.S. 83, 87 (1963) — Government actors are prohibited from pursuing proceedings through deception; suppression or misrepresentation of material facts that affect a person's ability to respond violates due process.

Giglio v. United States, 405 U.S. 150, 154 (1972) — Deliberate misrepresentation by government actors that induces reliance undermines the integrity of any resulting proceeding.

The Department then filed a hold the moment I was gone. The representation was false from the moment it was made. The sequence is the proof.

III. THE NOTICE AND ACCESS VIOLATIONS — EACH INDEPENDENTLY FATAL

A. No Notice Before Action

The Constitution requires notice reasonably calculated to inform a parent that a proceeding affecting their fundamental rights is pending. I was not served with the petition, the affidavits, or any supporting document before the Department sought or obtained emergency custody of my children. I was not notified that a 72-hour hearing was scheduled. To deny this motion without addressing the following authorities, this Court would have to hold that they do not apply:

Mullane v. Central Hanover Bank & Trust Co., 339 U.S. 306, 314 (1950) — "An elementary and fundamental requirement of due process in any proceeding which is to be accorded finality is notice reasonably calculated, under all the circumstances, to apprise interested parties of the pendency of the action and afford them an opportunity to present their objections."

Memphis Light, Gas & Water Div. v. Craft, 436 U.S. 1, 14 (1978) — Notice must be provided "at a meaningful time and in a meaningful manner"; notice provided after-the-fact satisfies neither requirement.

The Department knew I had been removed from my home by their own instruction. They knew I had no fixed address as a result of conditions they created. They made no meaningful effort to serve me before the hearing that extended the removal of my children. The Department's own conduct caused the very condition it then used to proceed without me.

B. No Opportunity to Be Heard

The 72-hour hearing took place without me. I had no counsel, no notice, and no opportunity to present my version of the facts. A hearing I cannot attend because I was never told it was happening is not a hearing. It is a proceeding conducted against me in secret. The following SCOTUS holdings require the opposite:

Mathews v. Eldridge, 424 U.S. 319, 333 (1976) — "The fundamental requirement of due process is the opportunity to be heard at a meaningful time and in a meaningful manner."

Armstrong v. Manzo, 380 U.S. 545, 552 (1965) — "A fundamental requirement of due process is the opportunity to be heard. It is an opportunity which must be granted at a meaningful time and in a meaningful manner."

Boddie v. Connecticut, 401 U.S. 371, 378 (1971) — Due process prohibits a state from adjudicating matters affecting fundamental interests without affording a meaningful opportunity to be heard, particularly in proceedings concerning family relationships.

The Department then sought expanded restrictions on a parent who was absent because of conditions they had created — at a hearing they knew that parent could not attend. Requesting additional constraints under those circumstances is not an oversight. It is an attempt to obtain orders that could not survive adversarial scrutiny, at a moment specifically created by the Department to prevent that scrutiny.

C. No Access to Evidence

I have not been provided with a single document filed in this case. I cannot see the petition, the affidavits, or the laboratory records for a test I immediately disputed. The following authorities make clear this Court cannot permit proceedings to continue on that basis:

Goldberg v. Kelly, 397 U.S. 254, 267 (1970) — "[T]he recipient must be allowed to see the evidence being used against him so that he may rebut it."

Joint Anti-Fascist Refugee Committee v. McGrath, 341 U.S. 123, 172 (1951) (Frankfurter, J., concurring) — "The heart of the matter is that democracy implies respect for the elementary rights of men, however suspect or unworthy; a democratic government must therefore practice fairness; and fairness can rarely be obtained by secret, one-sided determination of facts decisive of rights."

In re Gault, 387 U.S. 1, 33 (1967) — Due process requires that a party be informed of the specific charges or factual claims against them in proceedings that may result in a deprivation of liberty.

D. Petition Contains Material Identifying Errors

The petition identifies my son as Brian James Chapman Jr. — he is not a junior. That designation does not exist. Additionally, the date of birth listed for me in these proceedings is not my date of birth. It is my wife's. These errors are not trivial. The Supreme Court has addressed the standard of care required when government actors deprive citizens of fundamental rights:

Daniels v. Williams, 474 U.S. 327, 331 (1986) — While mere negligence does not violate due process, a pattern of errors in the exercise of state authority affecting fundamental interests is relevant to the constitutional adequacy of the proceeding as a whole.

If the Department cannot accurately identify the people in this case before filing, this Court should weigh carefully what standard of care governed everything else — the UA collection, the DNCO representation, and the failure to serve me before the 72-hour hearing.

IV. THE VIOLATIONS ARE INTERLOCKING — EACH MADE THE NEXT POSSIBLE

These are not isolated errors. They form a chain in which each link was created by the Department's own conduct:

The Department used coercive threat to obtain a UA. The result was immediately disputed and never certified. The Department then verified the DNCO scope solely to represent to me that my children would remain home if I left. I left based on that verified representation. The moment I was gone, the Department filed an emergency hold citing the disputed UA, using my absence — which they created — as part of the basis for the hold. My absence made it impossible to serve me at my residence. My inability to be served meant I missed the 72-hour hearing. Missing that hearing meant I could not contest any of the evidence. At that hearing, the Department sought additional constraints on a parent they knew was absent and unreachable because of their own prior actions.

Every step in this sequence was enabled by the step before it. Every constitutional violation was made possible by the Department's own preceding conduct. The Supreme Court has addressed this precise scenario — where government conduct creates the conditions for its own constitutionally required justification:

Palmore v. Sidoti, 466 U.S. 429, 432 (1984) — The law cannot directly or indirectly give effect to private biases; and the government may not manufacture the factual predicate for the very deprivation it seeks to impose.

Washington v. Glucksberg, 521 U.S. 702, 720 (1997) — Where a fundamental liberty interest is at stake, the government must demonstrate more than a rational basis; it must show a compelling interest pursued through narrowly tailored means. A manufactured emergency satisfies neither prong.

This is not a collection of isolated errors. It is a pattern that moves in one direction: away from my rights and toward an unchallenged removal.

V. RELIEF REQUESTED

A. Primary Relief — Dismissal

I move to dismiss this petition. The removal rests on a contested urinalysis I never certified, an emergency that did not exist at the time the hold was filed — because the alleged danger had already departed at the Department's own direction — and proceedings conducted without my knowledge or participation. The constitutional defects are not curable by further proceedings under the same petition. Dismissal is the appropriate remedy.

B. Alternative Relief — Stay Pending Proper Service

If the Court does not dismiss, I request that all proceedings be stayed immediately until:

- (1) I have been properly served with every petition, affidavit, report, exhibit, case plan, laboratory record, safety assessment, and court filing in this matter;
- (2) I have been given sufficient time to review those materials and prepare a response; and
- (3) The Department has been required to identify, on the record, the specific statutory authority and factual basis for both the initial emergency hold and its continued maintenance — including an explanation of how a contested UA justified an emergency filed after I had already left the residence at the Department's direction.

C. Preservation of Evidence — Urgent

I request that this Court order the immediate preservation of all evidence, with particular urgency as to:

- (1) Body-camera footage from the officer present on Monday. That footage captures my immediate objection to the urinalysis sample, the officer's acknowledgment of the visible contamination, the Department's representation that the children would remain home, and the moment after I left when the Department disclosed the hold. If that footage has been altered, deleted, or is claimed unavailable, that fact is itself evidence and must be preserved.
- (2) All squad and dash-camera video; all social worker notes, emails, text messages, and internal communications; the original laboratory specimen and chain-of-custody documentation; all dispatch logs; and all prior hearing recordings.

D. Required Written Findings

In any event, I request written findings of fact and conclusions of law specifically addressing:

- (1) Whether the Department had a constitutionally sufficient factual basis for emergency removal at the moment the hold was filed — after I had already left the home at the Department's direction;

(2) Whether the Department's representation that my children would remain home, followed immediately by the filing of a hold after I departed, constitutes a good-faith invocation of emergency authority or a manufactured basis for removal;

(3) Whether the 72-hour hearing, conducted without notice to me and without my participation, satisfied the due process requirements of the Fourteenth Amendment; and

(4) Whether continued removal can be maintained consistent with due process while I remain unserved and excluded from the proceedings determining my children's custody.

A denial of this motion without written findings on these questions is itself a constitutional error that will be raised on appeal. Every question not addressed in this Court's ruling will be presented to the appellate court with a specific request that the appellate court address what this Court did not.

NOTICE TO THE COURT — DENIAL REQUIRES DEPARTURE FROM BINDING SCOTUS PRECEDENT

This motion is structured so that denial requires this Court to openly contradict, distinguish, or ignore binding Supreme Court holdings. Each of the following authorities is directly applicable. A written ruling denying this motion must address each one specifically. Failure to do so is an independent ground for appellate reversal:

Parental Liberty

Troxel v. Granville, 530 U.S. 57 (2000) — Parent-child relationship is a fundamental liberty interest.

Santosky v. Kramer, 455 U.S. 745 (1982) — Clear and convincing evidence required before state may sever parental rights.

Stanley v. Illinois, 405 U.S. 645 (1972) — Parent's interest in custody warrants deference absent compelling state interest.

Notice

Mullane v. Central Hanover Bank, 339 U.S. 306 (1950) — Notice must be reasonably calculated to inform; secret proceedings are void.

Memphis Light, Gas & Water, 436 U.S. 1 (1978) — Notice must be provided at a meaningful time and in a meaningful manner.

Opportunity to Be Heard

Mathews v. Eldridge, 424 U.S. 319 (1976) — Three-factor balancing; parent's interest here is at apex of constitutional protection.

Armstrong v. Manzo, 380 U.S. 545 (1965) — Opportunity to be heard must be granted at meaningful time in meaningful manner.

Boddie v. Connecticut, 401 U.S. 371 (1971) — Fundamental rights adjudication requires meaningful opportunity to be heard.

Access to Evidence

Goldberg v. Kelly, 397 U.S. 254 (1970) — Recipient must be allowed to see and rebut evidence used against them.

In re Gault, 387 U.S. 1 (1967) — Due process requires notice of specific charges in proceedings affecting liberty.

Manufactured Emergency / Pretext

Reno v. Flores, 507 U.S. 292 (1993) — Substantive due process forbids arbitrary government deprivations of liberty.

County of Sacramento v. Lewis, 523 U.S. 833 (1998) — Conduct intended to injure without legitimate government purpose shocks the conscience.

Franks v. Delaware, 438 U.S. 154 (1978) — Emergency authorization resting on false or misleading facts must be voided.

Coerced Compliance

Lynumn v. Illinois, 372 U.S. 528 (1963) — Compliance obtained by threat to deprive parent of children is constitutionally invalid.

Bumper v. North Carolina, 391 U.S. 543 (1968) — Consent under color of coercive authority is not voluntary.

Government-Induced Reliance

Heckler v. Community Health Services, 467 U.S. 51 (1984) — Government may not defeat reasonable reliance on its own verified representations.

RESERVATION OF RIGHTS

I respectfully state for the record that I reserve all rights and remedies available to me under state and federal law arising from the conduct described above, including but not limited to claims under 42 U.S.C. § 1983. I am not asking this Court to adjudicate those claims today. I am asking that my objections be preserved on the record so that no future tribunal concludes I waived them.

Respectfully submitted,

James Chapman

Pro Se — Father

Date: _____

CONTROLLING AUTHORITIES · Mathews v. Eldridge, 424 U.S. 319 (1976) · Santosky v. Kramer, 455 U.S. 745 (1982) · Stanley v. Illinois, 405 U.S. 645 (1972) · Troxel v. Granville, 530 U.S. 57 (2000) · Goldberg v. Kelly, 397 U.S. 254 (1970) · Mullane v. Central Hanover Bank, 339 U.S. 306 (1950) · Reno v. Flores, 507 U.S. 292 (1993) · Armstrong v. Manzo, 380 U.S. 545 (1965) · Boddie v. Connecticut, 401 U.S. 371 (1971) · Lynum v. Illinois, 372 U.S. 528 (1963) · Bumper v. North Carolina, 391 U.S. 543 (1968) · Heckler v. Community Health Services, 467 U.S. 51 (1984) · Franks v. Delaware, 438 U.S. 154 (1978) · Brady v. Maryland, 373 U.S. 83 (1963) · In re Gault, 387 U.S. 1 (1967) · County of Sacramento v. Lewis, 523 U.S. 833 (1998) · 42 U.S.C. § 1983